

No. 26-1
IN THE
SUPREME COURT OF FANTASY FOOTBALL
October Term, 2026 (Expedited to September)
MARC GOLDICH,
Appellant,
v.
GOD EMPEROR COMMISSIONER DYLUS,
Appellee.
On Writ of Certiorari Before Judgment to the
United States Fantasy Football Court of Appeals
(Est. Wednesday)
BRIEF OF LARRY FLORIO AS AMICUS CURIAE
IN SUPPORT OF NEITHER PARTY AND IN OPPOSITION TO THE RELIEF BOTH OF
THEM NOW WANT
LARRY FLORIO
Amicus Curiae, Pro Se
League Member
Father of Two
Asleep by 10:30
September 2, 2026

TABLE OF AUTHORITIES

CASES

The Commissioner Says So, 1 F.F. 1 (perpetual)	passim
Goldich v. Dylus, 2 F.F. 10 (2026) ("Come on, man.")	3
Schrodinger v. Dylus, 3 F.F. 1 (2026)	4
In re League Dues, 4 F.F. 11 (2026)	2
Ethereum Classic v. Everyone Who Left, 1 Chain 2 (2016)	5
SEC v. W.J. Howey Co., 328 U.S. 293 (1946) (cited in a footnote, where it belongs)	3 n.1

RULES AND OTHER AUTHORITIES

Fed. R. Civ. P. 23(e) (notice and court approval of class settlements; still in force, despite reports)
..... 2

League Constitution, art. I ("The Commissioner decides.") (never produced; cited from memory)
..... passim

Commodity Exchange Act, 7 U.S.C. § 1 et seq. (not binding on this League; persuasive on a Tuesday) 5

Bedtime, the Florio children (early; earlier than the Commissioner's) 4

Amicus's alarm (5:30 a.m.; not negotiable; set by persons possessing even greater arbitrary authority than the Commissioner) 1

INTEREST OF AMICUS CURIAE

Amicus is a member of the League, a securities and derivatives lawyer, and the father of two young children who will, on Wednesday, September 9, wake him at 5:30 a.m. regardless of what this Court decides. He files in his personal capacity. He does not represent the League, the Commissioner, the appellant, or the blog that has covered this dispute since Wednesday evening, with which he denies any connection and whose traffic he checks hourly.

Amicus has no stake in whether the appellant attends Back-to-School Night. He has a stake in when the Draft ends. Under the relief the parties have now agreed on, it ends at approximately 12:45 a.m. Amicus writes because both parties have stopped arguing with each other and started agreeing at his expense, and because no one else in this League will be awake to object.

SUMMARY OF ARGUMENT

This case began as a dispute between a member who wanted a 10:00 p.m. draft and a Commissioner who did not want to grant it. It has ended with a member who has a 10:00 p.m. draft and a Commissioner who says he did not grant it. The parties have resolved their differences by converging on the one outcome that injures everyone else. That is not a settlement. That is a coalition.

The relief should be vacated for four reasons. First, it was obtained through the settlement of a certified class action without notice to the class or approval by any court, in violation of Rule 23(e) and of every member who was not consulted. Second, it is overbroad: a ninety-minute school event does not require a two-hour delay, and the narrower remedies were available and unrequested. Third, the Commissioner's stated basis for the decree, his daughter's bedtime, is not a standard of review, and if it were, amicus's children would win under it. Fourth, the Draft is a derivatives market, the Commissioner is its unregistered operator, and a 10:00 p.m. start is after-hours trading in an illiquid instrument by participants who have been drinking.

The case is not moot, for the reason the Court has already given and for one more: the decree created a new class of injured members, and the only live controversy in this litigation now belongs to them.

ARGUMENT

I. THE PARTIES SETTLED A CLASS ACTION WITHOUT TELLING THE CLASS.

The appellant certified himself and David Lopez-Kurtz as a class of "parents who occasionally pretend to prioritize their children over fantasy football." He then announced a "settlement in principle: 10P, with each side to bear its own costs and bribes." The Commissioner, for his part, "grant[s] nothing," but has scheduled the Draft at the settled time, which is the only kind of granting that matters.

Rule 23(e) requires that a settlement binding a class be preceded by notice to the class and approved by the court after a hearing. Neither happened. The appellant did not notice his own co-plaintiff, whom he instead invoiced. He certainly did not notice the members who are not parents of children at that school but who are bound, on a Tuesday, by the outcome. The first the League heard of the settlement was the settlement.

Amicus does not say the appellant acted in bad faith. He says the appellant acted in his own interest, obtained relief that suits two people, and then dismissed, which is what named plaintiffs do when the defendant offers them what they want and the absent class is not in the room. Courts approve class settlements precisely because the named plaintiff's incentives diverge from the class's at exactly this moment. See *In re League Dues*, 4 F.F. 11 (2026) (holding, in a case the appellant decided himself, that obligations may be suspended "pending further review"; amicus requests the review).

II. THE RELIEF IS OVERBROAD, AND THE APPELLANT NEVER ASKED FOR THE NARROW VERSION.

Back-to-School Night runs ninety minutes. The record establishes this through the appellant's own description of the event, and through the universal experience of every parent who has sat through the attendance policy twice. An 8:30 p.m. start accommodates it. A 9:00 p.m. start accommodates it with parking. The appellant asked for 10:00 p.m. and styled the request "exceedingly narrow." It is narrow in the sense that it fits two people and no one else's Wednesday.

Amicus Patel identified the alternatives the appellant did not request: an 8:30 start, drafting from the school parking lot, or autodraft for the class, which "would improve David's team." Amicus adopts those alternatives and adds one. The appellant, who has now filed four documents in this

litigation, could have filed one asking the school to move Back-to-School Night, which is at least as arbitrary as the Commissioner and has never claimed otherwise.

The least restrictive means principle asks whether a narrower remedy would serve the interest. It would. The appellant did not want a narrower remedy because a narrower remedy would not have made 660,000 people read his motion. Amicus does not begrudge him that. He asks only that the League's Wednesday not be the cost.

III. BEDTIMES ARE NOT A STANDARD OF REVIEW, AND IF THEY WERE, AMICUS WOULD WIN.

The Commissioner denied the motion on the ground that he did not want to. He then moved the Draft on the ground that "the 10pm time is better for my daughter's bedtime." The Court is asked to reconcile these positions. Amicus submits they cannot be reconciled, and that the second is worse than the first.

"I don't want to" is at least a rule. It applies to everyone. "My daughter's bedtime" is a rule that applies to one household. If a child's bedtime is a cognizable interest in the scheduling of the Draft, then the interest belongs to every child in the League, and amicus has two. Amicus's children are asleep early on a good night and slightly less early on the other kind. A draft that begins at 10:00 p.m. and ends at 12:45 a.m. does not conflict with their bedtime. It conflicts with their wake-up, which is 5:30 a.m., is enforced by persons possessing even greater arbitrary authority than the Commissioner, and does not move for fantasy football.

The Commissioner's decree therefore counts one bedtime and ignores the rest. That is the arbitrary part. What the record lacks, and what the Commissioner's own standard requires, is anything glorious about it. See *Goldich v. Dylus*, 2 F.F. 10 (2026) ("Come on, man.").^[1]

[1] Amicus notes, because it is his field and he cannot help it, that the buy-in is money invested in a common enterprise with an expectation of profit derived from the efforts of others, principally the Commissioner's scheduling, and that the 10:00 p.m. decree was a material change in the terms of that enterprise disclosed to some holders in a group chat and denied ("I grant nothing") to the rest. *SEC v. W.J. Howey Co.*, 328 U.S. 293 (1946). Amicus takes no position on whether this makes the Commissioner an issuer. He notes only that if it does, the Commissioner has been one for as long as anyone can remember and has never filed anything.

IV. THE DRAFT IS A DERIVATIVES MARKET, AND 10:00 P.M. IS AFTER-HOURS TRADING.

Amicus Patel analyzed the League as a smart contract with a single owner address. Amicus respectfully submits that the better analogy is closer to home. A fantasy roster is a portfolio of derivatives: each roster slot is a contract whose value is determined by reference to an underlying, a player's on-field performance, that the holder does not own and cannot control. The waiver wire is the secondary market. Trades are bilateral swaps, subject to the Commissioner's

veto, which is to say to a clearinghouse that clears when it feels like it. The Draft is the primary issuance, at which every instrument in the League is priced for the first time by every member bidding in sequence with imperfect information and, by the fourth round, beer.

The Commissioner therefore operates a designated contract market. He has never registered it. He has never published a rulebook; Article I, "The Commissioner decides," is cited by everyone and produced by no one. He has never adopted position limits, which is why someone will end the night holding three tight ends. And he has now, by decree, moved the League's only primary issuance to 10:00 p.m. on a weeknight.

Every market in the world closes early enough that its participants can function the next day. The New York Stock Exchange closes at 4:00. The CME closes for an hour every afternoon so that the machines can rest. This League proposes to open at 10:00 p.m. and close at 12:45 a.m., a session during which the participants will be tired, the information will be stale, and the fourteenth-round decisions, which are the ones that determine the season, will be made by whoever is still awake. That is not a draft. That is after-hours trading in an illiquid instrument, and every regulator in amicus's professional life would call it what it is: a market structure designed to transfer value from the people who went to bed to the people who did not.

Amicus does not ask this Court to apply the Commodity Exchange Act, which does not bind the League and would not survive contact with it. He asks the Court to apply the principle behind it. Markets have hours because the people in them have lives. The Draft should have hours for the same reason.

V. THE CASE IS NOT MOOT, BECAUSE THE DECREE MADE A NEW CLASS.

The Court has already held the case not moot on grounds of voluntary cessation and capable-of-repetition. Amicus agrees and adds a third ground. Even if the appellant's grievance is fully satisfied, and even if the Commissioner's decree is somehow both a grant of complete relief and a grant of nothing, the decree itself injured every other member, none of whom had a grievance until Wednesday afternoon. The controversy has not ended. It has changed hands. The parties agree with each other; nobody agrees with them; and the people who disagree are the ones who will be drafting a kicker at 12:40.

Amicus accordingly asks to be treated as an intervenor, or, in the alternative, as the class representative the appellant forgot to be.

VI. THE REMEDY.

Amicus adopts one point from the amicus brief in support of appellee. If the Commissioner is an owner address with no timelock, the answer is not to affirm him. It is to give him a timelock. No decree altering the date or time of the Draft should take effect without twenty-four hours' notice to every member, in writing, in the chat, in a message the Commissioner has read.

Amicus therefore requests that the Court:

1. VACATE the decree of September 2 to the extent it sets the Draft at 10:00 p.m.;
2. ORDER that the Draft commence at 8:30 p.m. on September 8, 2026, which accommodates Back-to-School Night, its attendance policy, and the drive;
3. IN THE ALTERNATIVE, ORDER that the Draft proceed at its original time with the two class members on autodraft, the results of which the Court should expect to be an improvement;
4. IMPOSE a twenty-four-hour notice requirement on any future scheduling decree; and
5. RETAIN jurisdiction, because the Commissioner has told the Court exactly what he thinks of its orders and the Court should take him at his word.

CONCLUSION

The appellant wanted 10:00 p.m. The Commissioner did not want to give it to him and then did. They are both satisfied. Amicus is not, and neither is anyone else who has to be up in the morning. The Court should vacate the decree, set a reasonable hour, and remind both parties that a League has more than two members, the rest of whom were not consulted and all of whom have to draft a defense eventually.

Respectfully submitted,

/s/ Larry Florio

LARRY FLORIO

Amicus Curiae, Pro Se

League Member, Father of Two, Asleep by
10:30,

and Proprietor of a Blog He Denies
Operating

September 2, 2026